

IN THE SUPREME COURT OF INDIA

CIVIL APPELLATE JURISDICTION

CIVIL APPEAL NO. 889 OF 2023

HARPREET SAWHNEY ... APPELLANT

VERSUS

PUNEET SHARMA ... RESPONDENT

JUDGMENT / RATIO DECIDENDI:

1. Civil appeal challenging decree of specific performance of contract for sale of residential property in New Delhi.
2. Core legal issue: Whether readiness and willingness under Section 16(c) of Specific Relief Act 1963 was continuously maintained.
3. Key facts: Agreement to Sell executed in 2017 for consideration of Rs. 2.5 Crores. Appellant deposited earnest money of Rs. 50 Lakhs.
4. **HELD: Appeal allowed. Decree of specific performance restored. Respondent directed to execute sale deed upon balance pay**